in distinct r[ooms." These words do perhaps in the strict construction i]mply no more than nocturnal separation. But surely it is a f[ar greater mischief for debtors to be annoyed and corrupted by] the wicked conversation of felons all day long, than to be dis[turbed by it in the night-time. I am not designing to infer from l]ence, nor yet from the character of the gentlemen who compose[d that Parliament, that the act should be construed according to m]y view of the argument; or to what I conjecture was their int[ention. I know it is wrong to explain laws by such a vague] principle as the supposed spirit of them. But it seems to me [necessary that there should be a total separation: for where the]re is but one court, the lower class of debtors join with the fel[ons in their diversions of fives, etc., and often become equall]y profligate: as at Worcester, Gloucester, Salisbury, Aylesbury, [Bedford, Ipswich, Bury, Leicester, etc. These different sort]s of prisoners are indeed generally separated at night. I do [not recollect more than one or two gaols where they lodge t]ogether, viz., the Borough-compter, Clerkenwell bridewell, the [Devizes and St. Albans. I must now add Tothill-fields bridew]ell, where debtors are confined, since Westminster gatehouse is [taken down. Constant separation is desirable. The gaol will p]y that means be kept cleaner: and if the smallpox, or the gaol-fe[ver, should infect one ward, the other at a distance may be free f]rom it. This would also remove the objection that is now made [against permitting debtors to work: that is, the danger of thei]r furnishing felons with tools for mischief, or escape.

In the deb[tors' ward there should be a day-room or kitchen; also a large] workshop for such as are willing to work. Some few gaols ha[ve the latter; and in them I have seen basket-makers, shoe]makers, etc., employed in their several trades; preserving th[eir habit of industry; contributing to the support of their fam]ilies, and lightening the burthen that by their imprisonmen[t falls on the respective parishes. Here I would observe, that] wherever the windows are glazed there should be casements; f[or I have found the debtors' rooms, and passages of many town] and city gaols, very offensive for want of apertures.

Prisoners i[ndicted for felony should not be compelled to work. But I have h]eard many of them wishing they might be permitted to eran somet[hing for their more comfortable support. In some few gaols they ha]ve this privilege, as at Exeter, Norwich, Ipswich, etc.[1]

[1] The debto[rs at York, Lincoln, Norwich, Ipswich, Chelmsford, etc., employ themse]lves in knitting and weaving purses, garters, nets, laces, etc. This is an eas[y and amusing employment, and might be established in any prison, even among felons. For the art may be learned in a week's time, and no dangerous instruments are necessary. But then they must have proper rooms and courts for their work.

I have said in my first edition, that women debtors should have a ward, a court, a pump, etc. to themselves; and no communication should be allowed between the two sexes: but observing that there are so few women debtors in prison (the number of whom may be seen in the table) I leave it to the consideration of the justices, whether a room or two in the gaoler's house may not be as convenient as a separate ward.

The ward for men debtors should also be over arcades, and placed on one side of the gaoler's house. This house should be in or near the middle of the gaol, with windows to the felons' and the debtors' court. This would be a check on the prisoners to keep them in order; and would engage the gaoler to be attentive to cleanliness and constant washing, to prevent his own apartments from being offensive.

A chapel is necessary in a gaol. It should have a gallery for debtors or women; for the latter should be out of sight of all the other prisoners; and the rest may be separated below. Bibles and prayer-books should be chained at convenient distances on each side: those who tear or otherwise damage them should be punished.

REGULATIONS

Without a due attention to the economy and government of a prison, it is evident that no contrivance of structure can secure it from being the abode of wickedness, disease, and misery; I shall therefore offer a few hints for the better regulation of a gaol.

The first care must be to find a good man for a gaoler; one that is honest, active, and humane. Such was Abel Dagge, who was formerly keeper of Bristol Newgate. I regretted his death, and revere his memory. And such is George Smith, keeper of Tothill-fields bridewell.

This officer must be sober himself, that he may, by example, as well as authority, restrain drunkenness, and other vices in his prison. To remove a strong temptation to the contrary, it is highly requisite that no gaoler, turnkey, or other servant be suffered to hold the tap; or to have any connection, concern, or interest whatever in the sale of liquors of any kind. Gaolers